

LLC/CORPORATION BUY-SELL AGREEMENT

Company Information

Company Name: _____

Entity Type (LLC or Corporation): _____

State of Formation: _____

Owners

Member A / Shareholder A Name: _____

Member A Ownership Percentage: _____

Member B / Shareholder B Name: _____

Member B Ownership Percentage: _____

Purpose

The owners of the Company desire to establish an orderly, predictable process for handling the transfer of an ownership interest upon certain triggering events, in order to preserve continuity of management and to protect both the Company and its remaining owners.

Triggering Events

This Agreement governs the disposition of an owner's interest in the Company upon the occurrence of any of the following triggering events: death; permanent disability; divorce or legal separation resulting in an award of an ownership interest to a former spouse; bankruptcy, insolvency, or an involuntary transfer by operation of law; or a voluntary decision by an owner to withdraw from and sell their interest.

Right of First Refusal

Before an owner may sell, pledge, transfer, or otherwise dispose of any ownership interest to a third party, that owner must first offer the interest to the Company and then to the remaining owner(s), on the same terms offered to the third party, giving the Company and remaining owner(s) the opportunity to purchase the interest before it may be transferred outside the ownership group.

Notice Period for Right of First Refusal (days): _____

Valuation of Interest

Valuation Method (e.g., independent appraisal, formula, fixed price): _____

The value determined under the method selected above shall be used to establish the purchase price of an owner's interest for any purchase arising under this Agreement, unless the owners agree in writing to a different value at the time of the triggering event.

Death or Disability

Upon the death or permanent disability of an owner, the Company and/or the remaining owner(s) shall have the option, but not the obligation, to purchase all or a portion of the affected owner's interest at the value determined under this Agreement.

Funding Source, if any (e.g., life or disability insurance): _____

Divorce or Involuntary Transfer

If an owner's interest becomes subject to a property settlement, divorce decree, judgment, garnishment, or other involuntary transfer, the affected owner (or the transferee, as applicable) shall promptly notify the Company, and the Company and/or remaining owner(s) shall have the right to purchase the affected interest under the terms of this Agreement.

Purchase Price and Payment Terms

Payment Terms (e.g., lump sum, installment schedule): _____

Closing

Closing Period Following Determination of Purchase Price (days): _____

Governing Law

This Agreement shall be governed by the laws of the State/Country of _____.

Signatures

Member A Signature: _____

Name: _____

Date: ____ / ____ / ____

Member B Signature: _____

Name: _____

Date: ____ / ____ / ____